

26NNCV00615 26NNCV00615

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-09-15

Motion: DEFENDANTS ALLEN AVENUE SELF-STORAGE, LLC AND OPTIVEST PROPERTIES, LLC'S DEMURRER TO COMPLAINT AND MOTION TO STRIKE

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Case Number: 26NNCV00615 Hearing Date: September 15, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

RHONDA ROGERS, et al.,

Plaintiff(s),

vs.

ALLEN
AVENUE SELF-STORAGE, LLC, et al.,

Defendant(s).

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CASE NO.: 26NNCV00615

[TENTATIVE]

ORDER RE: DEFENDANTS ALLEN AVENUE SELF-STORAGE, LLC AND OPTIVEST
PROPERTIES, LLC'S DEMURRER TO COMPLAINT AND MOTION TO STRIKE

Dept.

3

8:30

a.m.

September

15, 2026

I. INTRODUCTION

On January

27, 2026, plaintiffs Rhonda Rogers, Raven Rogers, Lawrence Rogers, and Pamela Rogers (collectively, "Plaintiffs") filed this action as the surviving heirs of Ronald Rogers ("Rogers"). Plaintiffs bring claims for: (1) negligence wrongful death, (2) negligence survival, and (3) elder abuse – neglect. Plaintiffs allege that defendants Optivest Properties, LLC ("Optivest") and Allen Avenue Self-Storage, LLC ("Allen Avenue") (collectively, "Defendants") own, operate, manage, and maintain a self-storage facility located at 234 Allen Avenue, Pasadena, California 91106 known as Allen Avenue Self-Storage ("Property"). Rogers executed a rental agreement with Defendants for a storage unit and rented the

unit for an extended period of years. (Compl., ¶ 10.) On or about May 27, 2025, Rogers, who was 80 years old at the time, was discovered deceased, halfway inside and halfway outside of his storage unit. (Compl., ¶ 12.) Plaintiffs allege that Defendants were aware Rogers was living in the storage facility, that Defendants' employees were aware of his possession of and even assisted him in moving "living items" into the storage unit, that employees were aware of Rogers's "attempt to mitigate the extreme heat," despite cutting off air circulation and bathroom access in the facility each day, that Defendants knowingly and "actively participated in creating the danger by controlling essential utilities and profiting from the arrangement by continuing to collect rent," (Compl., ¶ 64)

On April 13, 2026, Defendants filed a demurrer to all three causes of action in the Complaint and a motion to strike Plaintiffs' requests for punitive damages and heightened remedies, including attorneys' fees, allowed under Welfare and Institutions Code section 15657.

Plaintiffs
filed opposition briefs on September 1, 2026.

Defendants
filed reply briefs on September 8, 2026.

II. LEGAL STANDARD

A. Demurrer

A demurrer may be brought if insufficient facts are stated to support the cause of action asserted. (Code Civ. Proc., § 430.10, subd. (e).) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

A demurrer may also be brought on the grounds that it is uncertain, but such a demurrer will be sustained only where the complaint is so bad that the defendant cannot reasonably respond. (Code

Civ. Proc., § 430.10, subd. (f).) “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

Where the complaint contains substantial factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty will be overruled or plaintiff will be given leave to amend. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.)

B.
Motion
to Strike

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1).) The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a); Stafford v. Shultz (1954) 42 Cal.2d 767, 782 [“Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].) An immaterial or irrelevant allegation is one that is not essential to the statement of a claim or defense; is neither pertinent to nor supported by an otherwise sufficient claim or defense; or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

III. DISCUSSION

A.
Request
for Judicial Notice

“Judicial notice may not be taken of any matter unless authorized or required by law.” (Evid.Code, § 450.) Matters that are subject to judicial notice are listed in Evidence Code sections 451 and 452.

Defendants request the Court take judicial notice of the Self-Storage Rental Agreement (“Rental Agreement”) entered into between Rogers and Optivest as manager for Allen Avenue. Defendants argue that the Rental Agreement is judicially noticeable because it was referenced by Plaintiffs in the Complaint and that its existence and terms are not reasonably subject to dispute, possibly implying that the request is brought subject to Evidence Code section 452(h), which allows for judicial notice to be taken of “[f]acts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy.” (RJN, pp. 2-3; Compl., ¶¶ 10-11.)

The cases cited by Defendants are inapposite because the cases involving contracts that were “referenced” in the complaint either attached the contract as an exhibit or cited portions of the contract. Defendants also rely on cases that involve recorded documents or government documents that are considered “[o]fficial acts of the legislative, executive, and judicial departments” of the federal and state government. Furthermore, case law holds that “the existence of a contract between private parties cannot be established by judicial notice under Evidence Code section 452, subdivision (h).” (*The Travelers Indemnity Co. of Connecticut v. Navigators Specialty Ins. Co.* (2021) 70 Cal.App.5th 341, 354, citing *Gould v. Maryland Sound Industries, Inc.* (1995) 31 Cal.App.4th 1137, 1145,

Accordingly, the Rental Agreement cannot be judicially noticed and consists of extrinsic evidence that cannot be considered.

B.

Wrongful

Death and Survival Claims for Negligence

The basic elements of a negligence claim are: a duty on the part of defendant toward plaintiff; defendant's breach of that duty; and harm to plaintiff caused by the breach. (*Kesner v. Sup.Ct. (Pneumo Abex, LLC)* (2016) 1 Cal.5th 1132, 1142.)

Defendants argue the Rental Agreement precludes Plaintiffs' claims for negligence because the self-storage unit and the facility on a whole were not to be used as a residence, it was not maintained

as a living space, it was accepted in “as is” condition; and any death or injury arising from such prohibited use was released. Defendants also argue that the Rental Agreement makes the Complaint ambiguous and unintelligible.

Since the Rental Agreement is not judicially noticeable, the demurrer on these grounds is OVERRULED.

C.

Elder

Abuse Claims

A claim for elder abuse based on a theory of neglect requires the existence of “a robust caretaking or custodial relationship—that is, a relationship where a certain party has assumed a significant measure of responsibility for attending to one or more of an elder's basic needs that an able-bodied and fully competent adult would ordinarily be capable of managing without assistance.” (Winn v. Pioneer Medical Group, Inc. (2016) 63 Cal.4th 148, 158.) The plaintiff must also show that the defendant acted with recklessness, malice, oppression, or fraud in the commission of the abuse. (Welf. & Inst. Code, § 15657.) Recklessness, unlike negligence, involves more than “inadvertence, incompetence, unskillfulness, or a failure to take precautions” but rather rises to the level of a “conscious choice of a course of action ... with knowledge of the serious danger to others involved in it.” (Doe v. Kachru (2025) 115 Cal.App.5th 175, 214-215.) When an elder abuse claim is brought against a corporate defendant, the plaintiff must further allege that an officer, director or managing agent authorized or ratified the abuse or neglect. (Welf. & Inst. Code, § 15657, subd. (c); Civ. Code, § 3294.)

Here, Plaintiffs allege that Defendants assumed a custodial relationship with Rogers “[b]y knowingly permitting and facilitating the full-time residency of a vulnerable, 80-year-old man [Rogers] in a storage unit they controlled, and by controlling his access to essential services such as power, water, and building access.) (Compl., ¶ 60.) Plaintiffs allege Defendants acted with recklessness, oppression, and malice because they knew of Rogers's living situation and unsafe conditions but consciously disregarded his rights and safety. (Compl., ¶ 64.) Evidence of Defendants' knowledge include Defendants' employees' assistance with moving “living items” into the unit and an employee's awareness that Rogers would habitually unplug a hallway fan in order to try and mitigate the backdraft that would cause high

temperatures in the storage unit. (Compl., ¶¶ 20-21.) Plaintiffs contend Defendants not only failed to protect Rogers, but also “actively participated in creating the danger by controlling essential utilities and profiting from the arrangement by continuing to collect rent.” (Compl., ¶ 64.)

Here, Plaintiffs’ claim for elder abuse fails against Defendants, who are corporate entities. Plaintiffs do not allege that an officer, director or managing agent authorized or ratified the abuse or neglect. (Welf. & Inst. Code, § 15657.) Plaintiffs also do not allege facts showing that Defendants assumed a custodial relationship. “The distinctive relationship contemplated by the [Elder Abuse] Act entails more than casual or limited interactions.” (Winn, *supra*, 63 Cal.4th at p. 158.) The Complaint is devoid of allegations that Defendants explicitly assumed ongoing caretaking responsibilities, notwithstanding its continued collection of rent for the storage unit. (*Kruthanooch v. Glendale Adventist Medical Center* (2022) 83 Cal.App.5th 1109, 1130.)

Therefore,
the demurrer to the Third Cause of Action is SUSTAINED.

D. Motion to Strike

As the Court sustains the demurrer to the Third Cause of Action, the motion to strike Paragraphs 63, 64, and 66 is moot. The motion to strike Plaintiffs’ prayer for punitive damages is GRANTED because Plaintiffs do not allege that any act of malice, fraud, or oppression was committed or ratified by an officer, managing agent, or director.

IV. CONCLUSION

Defendants’ demurrer to the First and Second Causes of Action is OVERRULED.

Defendants’ demurrer to the Third Cause of Action is SUSTAINED with 20 days’ leave to amend.

Moving party to give notice.

Dated
this 15th

day of September
2026

William A. Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at ALHDEPT3@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.